T N GOLD ACTURUS MINE (Pvt) Ltd
versus
MIRIAM KATUPA N.O ENVIRONMENT MANAGEMENT AGENCY
and
DIRECTOR GENERAL OF THE ENVIRONMENTAL MANAGEMENT AGENCY N.O

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 8 October 2025 & 25 February 2026

Urgent Chamber Application for Interdict

Miss *F Mahere with T Vhudzijena*, for the applicant
O Kondongwe, for the respondents

TAKUVA J: This is an urgent application wherein the Applicant, TN Gold Arcturus Mine (Private) Limited, is seeking an interim order suspending Environment Management Agency Order 0018500 (the Stop Order) and Environmental Penalty Offences No. EP 047256 (the Penalty) issued by the first Respondent, pending determination of its appeal to the 3rd Respondent, the Director General of the Environmental Management Agency. The Applicant contends that the Stop Order and Penalty were issued without lawful authority and that immediate suspension is necessary to prevent irreparable harm to its mining operations and employees.

BACKGROUND FACTS

The Applicant, TN Gold Arcturus Mine (Private) Limited, is a mining company operating at Arcturus Mine in terms of Mining Lease No. 33 dated 13 August 2015. The lease authorises it to conduct mining operations at various mining sites including Fiona Mine, Venus Mine, Gladstone Mine, Ceylone Mine, Victor Mine and Reedbuck Mine.

In 2021, the Applicant submitted an Environmental Impact Assessment (EIA) Report (Project 9796) to the Environmental Management Agency (EMA). Following consideration of the report, an EIA Licence was issued on 26 July 2024 by the Director General of EMA.

The licence is valid until 26 July 2026 and authorises the Applicant to conduct mining activities in accordance with the approved EIA Report.

Acting on the strength of the extant EIA Licence, the Applicant resumed mining operations at its various sites, including Ceylone Open Pit. From October 2024, the Applicant commenced extraction of ore from Ceylone Open Pit and transported it to Chikomo Mill for processing. Ceylone Open Pit constitutes the Applicant's principal source of gold ore and is integral to its overall production capacity.

The Applicant completed construction of its crushing, milling and Carbon-in-Pulp (CIP) plants in 2025. Pending completion of its elution plant, it undertook test milling operations between June and August 2025 using a small elution plant located at Optimist Mine in Kadoma. As a result of these operations, approximately 80.984 kilograms of fine gold were recovered and delivered to Fidelity Gold Refinery. Upon commissioning of the elution plant, the Applicant anticipated a minimum production of 100 kilograms of gold per month, the bulk of which would be derived from ore mined at Ceylone Open Pit.

On 26 September 2025, the First Respondent, an inspector employed by EMA, visited Ceylone Open Pit and observed that the Applicant was engaged in a de-watering process. The First Respondent formed the view that the discharge of water from the mine into a natural waterway was not authorised under the Applicant's EIA Licence. Consequently, she issued Environment Management Agency Order No. 0018500 (a Stop Order) together with Environmental Penalty Offence No. EP 047256.

The Applicant contends that the water being discharged is uncontaminated underground water and not effluent or waste water from mining operations. It avers that the water is comparable to borehole water and that some of it had been abstracted by a neighbouring property, Jongwe Farm, for irrigation purposes.

The effect of the Stop Order was to prohibit the Applicant from conducting mining activities at Ceylone Open Pit, including essential de-watering operations necessary for continued extraction of ore.

Aggrieved by the issuance of the Stop Order and the penalty, the Applicant lodged an appeal to the Director General of EMA on 1 October 2025. That appeal remains pending. The present urgent chamber application seeks interim relief suspending the operation of the Stop Order and penalty pending determination of the appeal and the return date.

ISSUES FOR DETERMINATION

1. Whether the matter is urgent.
2. Whether the application is barred for non-exhaustion of domestic remedies under the Environmental Management Act [Chapter 20:27].
3. Whether the Stop Order and Penalty were lawfully issued under the Act.
4. Whether the Applicant has satisfied the requirements for an interim interdict.
5. Whether the operation of the enforcement measures issued by the Environmental Management Agency should be suspended pending appeal.

URGENCY

It is trite that a party seeking to be heard on an urgent basis must demonstrate that the matter cannot await determination in the ordinary course and that the urgency is not self-created. The principles governing urgent applications were articulated in *Kuvarega* v *Registrar-General & Anor* 1998 (1) ZLR 188 (H), where CHATIKOBO J held that urgency arises when, at the time the need to act arises, the matter cannot wait. The learned judge emphasised that a litigant must act promptly once the cause of complaint arises.

In the present matter, the enforcement order and penalty were issued on 26 September 2025. The Applicant filed its appeal on 1 October 2025 and thereafter approached this Court without undue delay. The effect of the Stop Order was to halt operations at what is alleged to be the Applicant's principal ore-producing site and to prevent de-watering operations said to be essential for structural stability. The potential accumulation of water in an open pit mine, with the attendant risk of wall collapse and operational paralysis, presents consequences that are immediate and potentially irreversible.

Although the Act provides internal remedies, there is no prescribed time frame within which the appeal must be determined. In the absence of an effective interim remedy capable of suspending the impugned decision, the Applicant cannot be faulted for seeking the protection of this Court. I am satisfied that the urgency is real and not self-created.

NON-EXHAUSTION OF DOMESTIC REMEDIES

The Respondents argue that the application is premature because the Applicant has not exhausted the remedies provided under sections 129 and 130 of the Environmental Management Act [*Chapter 20:27*]. It is generally recognised that where a statute provides domestic remedies, those remedies should ordinarily be pursued before approaching the High Court. However, the requirement to exhaust domestic remedies is not absolute. In *Girjac*

Services (Pvt) Ltd v *Mudzingwa* 1999 (1) ZLR 88 (H), the High Court explained that where domestic remedies are capable of providing effective redress with respect to the complaint, a litigant should generally exhaust them, but that this principle does not apply where those remedies cannot offer effective redress or where interim relief is necessary.

In *casu*, the Applicant has invoked the internal appeal procedure by lodging its appeal with the Director General of the Environmental Management Agency. The present proceedings do not seek to determine that appeal but to suspend the impugned Stop Order and penalty pending its determination. There is no provision in the Act for a statutory mechanism to suspend enforcement measures pending appeal, nor is there a timeframe for determination of such appeals. Consequently, in circumstances where internal remedies cannot provide the interim protection sought and could result in irreparable harm if awaited, the doctrine of exhaustion does not bar the Applicant from approaching this Court for interim relief.

REQUIREMENTS FOR AN INTERIM INTERDICT

The requirements for an interim interdict are settled in our law. In *Setlogelo* v *Setlogelo* 1914 AD 221, INNES JA held that an applicant must establish a prima facie right, though open to some doubt; a well-grounded apprehension of irreparable harm if the relief is not granted; that the balance of convenience favours the grant; and the absence of another satisfactory remedy. These principles have consistently been applied in this jurisdiction.

PRIMA FACIE RIGHT

The Applicant holds Mining Lease No. 33 and an Environmental Impact Assessment Licence issued by the Director General of the Environmental Management Agency, valid until July 2026. These instruments confer legally recognisable rights to conduct mining operations subject to statutory compliance.

The Respondents contend that the impugned activities were not covered by the EIA and that the enforcement order was lawfully issued under section 37 of the Act. The Applicant, on the other hand, argues that the order effectively suspends its EIA Licence, a power which, under section 104 of the Act, vests in the Director General.

At this stage, the Court is not required to make a definitive pronouncement on the legality of the order. The question is whether the Applicant has shown a right deserving interim protection. The existence of a valid and subsisting EIA Licence, coupled with the

serious operational consequences of the Stop Order, establishes at least a prima facie right within the meaning of *Setlogelo v Setlogelo* (*supra*).

IRREPARABLE HARM

The Applicant avers that Ceylone Mine contributes approximately seventy percent of its gold ore and that de-watering is essential to prevent structural collapse of the pit walls. The harm apprehended includes permanent damage to mining infrastructure, loss of production, and danger to life.

In *Njokweni* v *Qina and Others* [2023] ZAECMHC 13 (Economic-Management High Court, South Africa), the court explained irreparable harm in the context of an interim interdict as follows:

> "Irreparable harm may be defined as the loss of property (including incorporeal property and money) in circumstances where its recovery is impossible or improbable."

The apprehension of harm in the present matter is grounded in operational realities rather than speculation. I am satisfied that this requirement has been met.

BALANCE OF CONVENIENCE

The Court must weigh the prejudice to the Applicant if relief is refused against the prejudice to the Respondents if it is granted. If the enforcement order remains operative, the Applicant's principal ore source will remain shut down and de-watering operations may cease, with potentially catastrophic consequences for the stability of the pit and the ongoing viability of the mining business. If the order is suspended pending appeal, however, the Respondents retain oversight powers and may impose any necessary compliance conditions to safeguard the environment. As was stated in *Zimbabwe Cane Farmers Association* v *Mutamba* 2017 ZWHHC 290 (HH 290-17),

> "In exercising its discretion the court weighs, inter alia, the prejudice to the applicant, if the interdict is withheld, against the prejudice to the respondent if it is granted. This is sometimes called the balance of convenience."

On the facts before me, the prejudice to the Applicant outweighs any temporary inconvenience to the Respondents pending determination of the appeal.

ABSENCE OF ALTERNATIVE REMEDY

Although an appeal has been lodged, there is no provision in the Act expressly suspending enforcement orders pending appeal, nor any demonstrated mechanism for interim

relief within the administrative framework. In the absence of an effective alternative remedy, recourse to this Court is justified.

CONCLUSION

The Applicant has established urgency and has satisfied all the requirements for the grant of an interim interdict as set out in *Setlogelo* v *Setlogelo* (*supra*). The preliminary objections raised by the Respondents are without merit. The interests of justice require that the status quo be preserved pending determination of the internal appeal.

It is accordingly ordered;

1. The matter be and is hereby treated as urgent and the ordinary rules are dispensed with.
2. Pending determination of the Applicant's appeal before the Director General of the Environmental Management Agency and pending the return date, the operation of: 2.1 Order No. ORD0018500; and 2.2 Penalty Ticket No. EP047256; be and are hereby suspended.
3. The Respondents shall pay the costs of this application.

TAKUVA J:……..

Mtetwa & Nyambirai, applicant's legal practitioner
Dube Manikai and Hwacha, respondents' legal practitioner